

Constitutional Amendment A is an amendment of the Wyoming Constitution enacted in 2012 to enshrine the right of individuals to make their own health care decisions. The amendment was passed principally in opposition to the Affordable Care Act (ACA).

Background

The amendment was primarily sponsored by Wyoming State Senator Leslie Nutting (7th district) intended to prohibit people from being compelled to participate in the ACA. Opponents of the amendment said that the amendment would disallow healthcare access to many Wyoming residents, and that the amendment would have unintended consequences.

Provisions

The amendment created a new Section 38 within Article 1 of the Wyoming constitution entitled "Right of health care access". Amongst other things, the amendment created the following line within the Wyoming Constitution:

Each competent adult shall have the right to make his or her own health care decisions.

Results

The following table details the results by county:

Impact on abortion

Following the US Supreme Court's decision in *Dobbs v. Jackson Women's Health Organization* overturning of *Roe v. Wade* in 2022, state legislatures were allowed to regulate any aspect of abortion. The Wyoming State Legislature passed HB92, a trigger law that would ban abortion beginning five days after the overturn of *Roe v. Wade*. The amendment had the unintended

impact of allowing a lawsuit against HB92 that alleged that HB92 violated the state constitution by denying competent individuals the right to make their own health care decisions. On January 6, 2026, the Wyoming Supreme Court ruled abortion restrictions unconstitutional under said amendment, stating that "whether to terminate or continue a pregnancy is a woman's own health care decision protected by Article 1, Section 38."

== References ==